

9:00 AM

Line 6

24-CLJ-03780 LVNV FUNDING, LLC VS. JUAN LUIS AGUILERA

LVNV FUNDING, LLC
JUAN LUIS AGUILERA

STELLA PARK

Plaintiff's Motion to Transfer Case to Appropriate Court [C.C.P. § 397]

TENTATIVE RULING:

Plaintiff's Motion to Transfer Case to Appropriate Court (C.C.P. § 397), is GRANTED.

The Court reviewed Plaintiff's Notice of Motion and Motion to Transfer Case to Appropriate Court, Memorandum of Points and Authorities in Support, and Declaration of Counsel in Support all filed on July 2, 2026. There is no opposition.

The Court also reviewed the July 26, 2024 Declaration of Non-Service filed by Plaintiff's process server, indicating the named defendant is no longer residing at a last known address in Redwood City, CA. The Declaration of Counsel and Exhibit 1 is a confirmation from the Post Office that Defendant has moved and is receiving mail at an address located in Los Angeles County.

Code of Civil Procedure Section 395(a) provides, generally, that the court in the county where the defendant resides at the time the action is filed is the proper court for trial of the action. Plaintiff has now demonstrated that this is not the proper county for this matter to be heard, and that Los Angeles County is the proper county.

Accordingly, the motion is GRANTED. As the motion is unopposed, the Court will utilize the proposed Order that was submitted with the motion.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court by Minute Order.

9:00 AM

Line 7

25-CIV-05475 ANGINEH KALABY, ET AL VS. VOLKSWAGEN GROUP OF AMERICA,
INC., ET AL

ANGINEH KALABY
VOLKSWAGEN GROUP OF AMERICA, INC.

NINO SANAIA
SEAN P. CONBOY

Defendants' Motion for Judgment on the Pleadings

TENTATIVE RULING:

Defendants Volkswagen Group of America, Inc. ("Volkswagen") and Rusnak/Pasadena Audi's ("Rusnak") Motion for Judgment on the Pleadings is SUSTAINED-IN-PART with leave to amend with respect to the Fifth Cause of Action for Negligent Repair in Plaintiffs' Complaint, and OVERRULED-IN-PART with respect to the remaining causes of action, as follows:

Motion for Judgment on the Pleadings

A motion for judgment on the pleadings is to be granted under essentially the same standard as that applied in the case of a general demurrer; under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (*Shea Homes Ltd. Partnership v. County of Alameda* (2003) 110 CA4th 1246, 1254.) The court is generally confined to the facts alleged in the challenged pleading, and facts which are subject to judicial notice, and extrinsic evidence is not to be considered. (*Gerawan Farming, Inc. v. Lyons* (2000) 24 C4th 468, 515-516; *Sykora v. State Dep't of State Hosps.* (2014) 225 CA4th 1530, 1534.) Where a defendant's answer raises any material issue or sets up any affirmative matter constituting a defense, a motion for judgment on the pleadings should be denied. (*Allstate Ins. Co. v Kim W.* (1984) 160 CA3d 326, 330-331.)

Here, the first four causes of action in Plaintiff's Complaint allege violations of the Song Beverly Warranty Act pertaining to a warranty contract for a 2023 Audi Q 7 (the "Subject Vehicle") between Plaintiffs Angineh Kalaby and Saro Avakian and Defendant Volkswagen Group of America, Inc. ("Volkswagon"), the fifth alleges negligent repair, and the sixth alleges fraudulent inducement by concealment. Defendants Volkswagen and Rusnak/Pasadena Audi ("Rusnak") argue that the first four causes of action are subject to judgment on the pleadings because Plaintiffs do not allege a sale of the Subject Vehicle.

Allegations of Sale – Song Beverly Warranty Act Claims

Defendants argue that the Complaint "fails to state a cause of action under the Song-Beverly Consumer Warranty Act because it does not allege that Plaintiffs purchased a consumer good, nor does it allege that Plaintiffs were a buyer of the Subject Vehicle." (Motion, at p. 9:22-24.) The Complaint alleges that "Plaintiffs are "buyers" of consumer goods under the Act."
